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*Only by e-mail*

21.12.2023

Your ref.: NOP-2021-008EP
Our ref.: NUR006WEP
Agent's ref.: EUR1621WEP

Re: European Patent Application No. **19898944.4** in the name of FTLAB Co., Ltd.

**Communication of intention to grant the patent (Rule 71(3) EPC)**

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Dear Sirs,

We are pleased to inform you that the European patent office intends to grant a European Patent based on the above application. Enclosed are the relevant communication under Rule 71(3) EPC and the text in which the office intends to grant the patent.

A translation of the claims in French and German must be submitted and a grant fee must be paid within a non-extendable period of **4 (four) months** from the date of the above communication.

Once the above acts are completed, the text will be deemed approved and the decision to grant the patent will be issued.

Since we need sufficient time to prepare the French and German translation of the claims, we look forward to receiving your instructions and the payment of the attached invoice as soon as possible, preferably within **15.02.2024**.

Post-grant acts may include validation at national level in the contracting States, requesting unitary effect or opting out from the jurisdiction of the Unified Patent Court. Please see below for details.

Validation at national level

Within **three months** from the date of publication of the mention of the grant in the European Patent Bulletin, certain Contracting States

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require that a translation of the patent in their national language, or at least a translation of the claims, is submitted to the relevant national patent office. In the event of failure to observe this provision, the patent has no effect in that State (Art 65 EPC). We will be glad to assist you in this respect and we are at your disposal to provide a detailed quotation for the preparation and filing of post-grant translations via our foreign associates. To this purpose, we would appreciate to know in advance which contracting States are of interest.

**The Unitary Patent system**

The Unitary Patent system is now fully operational.
The Unitary Patent system introduces the option of unitary effect and the exclusive jurisdiction of the Unified Patent Court (UPC).

Applicants of European Patents can request a **unitary effect for the Member States of the system**, currently Austria, Belgium, Bulgaria, Denmark, Estonia, Finland, France, Germany, Italy, Latvia, Lithuania, Luxembourg, Malta, the Netherlands, Portugal, Slovenia, Sweden.

A Unified Patent Court (UPC) has exclusive jurisdiction for litigation (infringement and validity actions) relating to European patents, either unitary or non-unitary and regardless of the date of grant. However, for a transitional period of seven years, **applicants/proprietors of a non-unitary patent may opt-out the jurisdiction of the UPC** to keep litigation within the jurisdiction of national courts. The opt-out is not available for patents with unitary effect.

The European patent with unitary effect (Unitary Patent) is subject to a single renewal fee for all the above-mentioned Member States. It may be limited, transferred or revoked, or lapse, only in respect of all Member States. It can be licensed in respect of the whole or part of the territories of the Member States.
The request of unitary effect must be filed within a time limit of **one month** from the date of publication of the mention of the grant in the European Patent Bulletin. A translation of the patent specification (into English or one of any other official language of Member State, depending on the language of the proceedings before the EPO) is required.

In view of the above you may select one of the following **three options**:

1) Patent with Unitary effect and subject to the jurisdiction of the UPC, or

2) Patent with no Unitary effect but subject to the UPC, or

3) Patent with no Unitary effect and opted out from the UPC jurisdiction, thus remaining under the jurisdiction of the National Courts of the Contracting States.

We look forward to your instructions on which of the above options is desired, possibly within **15.02.2024**.

We remain at your disposal for any clarification.

Yours sincerely,

**EURATTORNEYS EEIG**



Stefano Sinigaglia

Encl.: as above